

through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$10,000.00 for the Plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Court finds that the Settlement falls within the range of reasonableness, was reached through arm's length negotiations with the assistance of a neutral mediator, and appears fair, adequate, and reasonable for preliminary approval purposes.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval.
2. The motion is **granted**.
3. Plaintiff's Counsel is directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and this ruling, attaching a copy of this ruling.
4. Plaintiff's counsel is ordered to obtain a hearing date for the Motion for Final Approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
5. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
6. The Court may issue a release through an unreported minute order without hearing on the compliance statement.
7. No appearance is required at the hearing on July 7, 2026.

7. 9:00 AM CASE NUMBER: C23-03034
CASE NAME: VICTORIA PLUMLEE VS. JERRY MCLAUGHLIN, MD
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT
FILED BY:

TENTATIVE RULING:

Summary: Defendant Stanford Health Care's ("Defendant") Demurrer to the Third Amended

Complaint is **vacated**. Plaintiff Victoria Plumlee dismissed her action against Defendant with prejudice on May 5, 2026. The Notice of Entry of Dismissal was filed on May 7, 2026. No appearance is required at the hearing on July 8, 2026.

8. 9:00 AM CASE NUMBER: C24-01053
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ABDULLAH TALEB
HEARING ON SUMMARY MOTION FILED BY PLAINTIFF, JPMORGAN CHASE BANK
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff JPMorgan Chase Bank, N.A.'s Motion for Summary Judgment or, in the Alternative, Summary Adjudication as against Defendant Abdullah M. Taleb.

For the following reasons, Plaintiff's Motion for Summary Judgment is **granted**.

Factual Background

This matter pertains to the alleged default in making payments on a loan made by Plaintiff to Defendant RCS Brokering, Inc. and guaranteed by Defendant Abdullah M. Taleb.

On January 20, 2022, Plaintiff JPMorgan Chase Bank, N.A. ("Chase") made a line of credit loan to Defendant RCS Brokering Inc. in the amount of \$400,000 (the "Loan"). (UMF 1-3) The Line of Credit Note ("Note") evidencing the Loan was signed by Defendant Abdullah Taleb as President of RCS Brokering, Inc. (UMF 2, Escobar Decl. Ex. 1.) Mr. Taleb also signed a Continuing Guaranty ("Guaranty") wherein he personally agreed to "pay the Liabilities" in the event of a default on the Loan. (UMF 5, Escobar Decl. Ex. 2.) Pursuant to the Guaranty Defendant Taleb agreed to pay not only the Liabilities "but will also reimburse the Bank for any fees, charges, costs and expenses, including reasonable attorneys' fees ... and court costs, that the Bank may pay in collecting from the Borrower or the Guarantor...." (UMF 6, Escobar Decl. Ex. 2.)

Under the Note, RCS was required to make monthly payments of "[a]ccrued interest or \$100.00, whichever is greater ... beginning on February 20, 2022...." (UMF 7.) The Account Transaction History ("History") indicates that the full amount of the Loan – *i.e.* \$400,000 – was advanced and outstanding as of January 31, 2022. (Escobar Decl. Ex. 3.) The History shows payments made on the Loan through at least November 2023. (*Ibid.*) In December 2023, RCS stopped making payments on the Loan thereby defaulting. (UMF 8.)

In the event of a default Chase was entitled to declare the Loan to be "immediately due and payable." (UMF 9.) The Guaranty provides that in the event of a default by RCS, Mr. Taleb shall pay any and all amounts due under the Loan. (UMF 10.) On February 8, 2024, Chase sent notice of the default to both RCS and Mr. Taleb. (UMF 11-12.) The default has not been cured. (UMF 13.)

The Loan was guaranteed in part by the Small Business Administration ("SBA"). (UMF 20.) After RCS's default, the SBA honored the guarantee and paid to Chase \$179,5991.87. (*Ibid.*) That amount was